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Mr. Piero A Bugoni Pro - Se
160 W. Camino Real
#191
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IN THE UNITED STATES COURT OF APPEALS
IN AND FOR THE WASHINGTON DISTRICT OF COLUMBIA CIRCUIT

Chamber of Commerce Of The
United States Of America
APPELLANT

Case No.: 25-5473
District Case No.: 25-CV-3675

**AMICUS BRIEF IN SUPPORT
OF APPELLEES**

vs.

United States Department Of Homeland
Security
et al.

APPELLEES

Amicus Brief In support of This Court affirming the Trial Court's Ruling in this matter:

Appellant, The United States Chamber of Commerce, (“The Chamber”), has no standing. Appellant is not an employer. Appellant is not injured by the Executive “RESTRICTION ON ENTRY OF CERTAIN NONIMMIGRANT WORKERS” Proclamation. (Hereafter the “H1B Fee Proclamation”). Instead, at least one of Appellant's members must come forward and claim they are unable to find American workers. However, even this claim does not stand, because given the next H1B lottery in March 2026, Appellant's membership has five months from the filing of their Complaint to find American Workers. Further, by filing their Complaint, Appellant has given Public Notice that its members have Jobs available for which they cannot find American workers. This creates an opportunity for American Workers to compete for those Jobs directly with Appellant's membership. Given the current job market, they should have no trouble finding American Workers, and as such the \$100,000 fee will not apply to them, and there is no injury.

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Since Appellant claims their membership “intend” to sponsor H1B Visa holders, then that business decision may be subject to a fee from Government. If they are truly unable to find American Workers, and are forced to pay a high fee to Government for something that they would otherwise not have to pay anything to Government for, namely hiring an American, then they may have standing. However, choosing not to look for American Workers is not the same as not being able to find one. Appellant's members only have to hire Americans to not be subject to the H1B Visa fee.

Regardless, it is still a requirement that an employer be engaging in a business that benefits the nation as a whole. Employers that only operate locally, or that do not engage in interstate commerce, or that serve a fixed clientele, may not be eligible at all for H1B Visas. Further, and more disturbing, State and Municipal agencies, (that may be part of Appellant's membership), have filed tens of thousands of LCAs while likewise not being eligible at all to employ foreign workers. The ONLY legitimate usage of foreign workers by State and Municipal agencies is to use them to train American workers to proficiency in the specialty that is supposedly unavailable from American Workers. State and Municipal agencies have a duty to their constituencies to only use foreign workers for the purpose of knowledge and skill transfer to American workers. In short, state and municipal agencies have a duty to only use foreign workers to suck their knowledge from them to provide it to Americans, and to use them to train American replacements, and to then send those foreign workers back to their country.

As such if particular members of the Chamber can show they employ foreign workers to produce goods for the American market as a whole, or to provide services to Americans as a whole, and have no other option but to hire a foreign worker, then they may have standing, but those individual parties must come forward and claim actual injury, and must be treated on a case-by-case basis.

However, as long as those actual employers have either or both Administrative Remedies to exhaust prior, or less restrictive alternatives, namely hiring Americans, they have no standing, and that lack of standing by Appellant's membership inures upon Appellant as their representative. Put simply, if none of Appellant's members have standing, then Appellant as their representative has no standing.

Further, and perhaps more important, each party that files a lawsuit against The H1B Fee Proclamation, creates an opportunity for Americans to apply for the Jobs those Appellants claim they cannot fill with American workers. As such, rather than grant the relief requested by Appellant, which will hurt tens of thousands of persons who are currently being scammed by Indian scammers that are colluding to steal lucrative employment and business in Specialty Occupations classified under SOC 15-1200, This Court should compel Appellant to publish herein, as a matter of evidence, and public record, ALL employment that its members have available, so that American Workers may contact those parties and compete for that employment directly with Appellant's members, as opposed to through phony job websites, phony "staffing agencies", phony "recruiters", third-parties, or fourth-party Indian deals. Failure by This Court to do so is clear abuse of discretion.

For that reason, This Court should not summarily grant the relief requested by Appellant, without at least affording proper Discovery so that parties Appellees herein can prove lack of merit to Appellant's claims.

Regardless, Appellant admits that its members have no interest in even looking for American Workers, and as such, they cannot complain that a particular fee is too high, when they have options available to not have to pay it at all.

Discussion In Opposition To Appellant's Complaint:

Appellant cites numerous “studies” that amount to hearsay at best. None of the authors of those studies have submitted affidavits as to their truth. Most of those studies are long expired. That is, in America, economic conditions change on a quarterly basis. Particularly labor conditions. Nothing about economic conditions nor labor conditions from years ago is even relevant today. Very simply, the past does not perpetuate into the present, and the future always comes anew.

Further, and more disturbing, Appellant continues to address H1B Visas as though they are some kind of “sure thing”. This is clear indication that it's members must be taking advantage of some kind of fraud or scamming of the system. At no time did Appellant acknowledge that H1B Visas are issued by a Lottery, and that its members may not receive any Visa at all. Because H1B Visas are issued by a Lottery, and approximately ninety percent of the total applications filed do not result in obtaining a Visa, there is ordinarily no reason for Appellant to claim any kind of damage for not having received one, much less regard them as though they are a sure thing. However, since Appellant's members use phony contrivances to increase the number of applications they file by orders of magnitude, and have been doing it for years, for them it is just *de facto* that they will receive them, and now they complain about having to pay for scamming the system like that.

Appellant's members flood the H1B Lottery with applications by using “an army of middlemen” to file as many LCAs as they can, to guarantee at least some number of Lottery selections. Since the aggregate possibility of obtaining a Visa by Lottery is about one in ten, then every ten applications will statistically yield one Visa. To accomplish this, Appellant's membership uses more than 1,000 sub-vendors to file additional LCAs. They do this by sending a requirement for an employee to multiple of these sub-vendors, who are ultimately front-companies posing as “staffing agencies”, or as other IT service companies. Ordinarily, that would be a legitimate business practice if it were only for the purpose of finding

candidates, and once a candidate was found, the requirement was filled. However, those sub-vendors then falsely pretend that they cannot find American workers to fill the requirement, and use that as cause to file an LCA. Because these sub-vendors are separate corporate entities supposedly operating independently, each one can file a separate LCA for a single employment role. Whatever sub-vendor succeeds in obtaining a Visa can then transfer that Visa to whatever company they are colluding with, and it will become cap-exempt, or they simply work that employee as a contractor to their accomplice company.

The phony front-companies that do this also flood online job listing sites with “ghost job” offers that are for the purpose of creating the false appearance that they are offering the jobs to Americans “in good faith”. It also serves the purpose of creating the false appearance of a “labor shortage” that can then be falsely claimed by Appellant as in this case.

It should not go unnoticed that by Appellant filing their Complaint they are giving notice to all of America that they have Jobs available. This is a boon to American workers because instead of wasting their time applying to hundreds of phony jobs that are all posted to create the appearance that Appellant's Members are offering jobs “in good faith” to Americans, and using “industry standard” methods to do so, applicants can connect directly to hiring managers and apply for the jobs that Appellant's members say they cannot fill. It is for this reason that The Court must sever any of Appellants membership from this matter that are not affected by the Visa fee Proclamation, and at the same time compel those that are, to identify themselves and the jobs they have available to the Public.

Constitutional Challenge To The H1B Visa Program As Applied:

The H1B Program as-applied violates the Rights of Americans as follows:

Peace and Dignity:

It offends the Peace and Dignity of every American worker to have foreign corporations operating on American soil illegally claiming they cannot find American workers to fill jobs, in order to import foreign workers, and give those jobs to them.

It is an offense to the Peace and Dignity of every American to have foreign corporations start or assist with starting more than 1,000 domestic corporations, and staff them with foreigners for the purpose of colluding to illegally claim that they cannot find American workers in order to traffic foreign workers to foreign corporations displacing American workers in America.

It is an offense to the Peace and Dignity of every American for corporations foreign and domestic to collude for the purpose of engaging in anticompetitive business practices, market-rigging practices and market cornering practices, to displace American workers and take business away from American companies, in America.

Life:

The Right to Life includes the quality thereof. By stealing an entire market of lucrative jobs, and businesses, Indian scammers have deprived Americans of that lucre, and the quality of life it brings.

Liberty:

The Right to Liberty includes Liberty to Contract, and the Liberty to pursue a career. That

Liberty has been stolen from American workers by a concerted effort of thousands of Indian

scammers acting as phony employers, and using fraudulent LCA Filings to direct Jobs from American companies for American workers instead to foreign workers disproportionately, exclusively, and permanently.

Property:

Property is anything of value. Value is the object of any human desire. Petitioner among hundreds of thousands of Americans similarly situated desire to profit, pay their expenses, provide for their families and for their elderly years. Those are all items of Property. The H1B Visa program violates American Rights to that Property by creating an avenue for Indian scammers to take that property away from Americans, as described in this Petition.

Equal Protection of Law:

The meaning of “displaced worker” in the relevant portions of the INA (8 U.S.C. 1182 (n)) does not afford any protection for competing workers and businesses. It protects those employed by a given employer from being displaced by that employer, but does not protect persons and businesses engaging in commerce from interference by anti-competitive business practices, market rigging, monopolistic practices, Visa Fraud, Wire Fraud, and Collusion, by employers and foreign workers. In short, INA Section (n) protects existing employees from being fired for the purpose of replacing them with an H1B worker, and it protects workers from being “scabbed” by H1B workers while they are on strike. It does not protect those who are seeking employment and business to the same extent. Such persons include the unemployed seeking employment, recent graduates and others seeking first employment, those employed but seeking better paying jobs or different jobs, and also include “gig-workers” working as unincorporated independent contractors, persons operating as corporations, as well as personnel staffing agencies that compete to provide workers.

Commerce:

The H1B Visa program Violates Americans' Right to Engage In Commerce because it creates an avenue for Indian scammers to engage in anticompetitive, collusive, and monopolistic business practices, as described in this Petition, and those business practices displace American workers and interfere by a pattern of wire fraud, bribery, ID fraud, citizenship and naturalization fraud, obstruction, Visa fraud, immigration fraud, human trafficking, and other RICO acts, with American companies pursuing and profiting from interstate and foreign commerce.

Constitutional Challenge To 8 U.S.C. § 1182(n), 8 U.S.C. § 1184(i)

The H1B Program is enabled by statute, specifically 8 U.S.C. § 1182(n), and is regulated by 20 CFR § 655. “Specialty Occupation” is defined by 8 U.S.C. § 1184(i).

The enabling statute is overbroad because it lacks language necessary to prevent the colossal fraud described herein. As such it allows application far beyond the scope of its stated objective, and as described herein, its extra breadth is used to commit fraud and other offenses both civil and criminal.

8 U.S.C. § 1182(n) is a clear violation of Separation of Powers in that it repeatedly mandates the official duty of the Secretary of The Department of Labor and The Attorney General.

The language of that section is not merely “congressional oversight” but congressional overreach. That section repeatedly states: “the Attorney General shall...”, and “the Secretary shall...”. This is a clear violation of the separation of powers. “Shall...” in legislation means a mandatory act. What is the penalty for disobedience of those mandates by those officers?

What authority does Congress have to order about Executive Branch officers? In all cases the final decision to act in official capacity is by the individual person holding that office, because they are individually liable for wrongdoing. (Not Congress). In all cases those

persons have both a Right and a Duty to refuse illegal or unconstitutional orders. Section (n)

attempts to circumvent that by legislation. As such it legislates away an officers Right and Duty to refuse, as well as their discretion, which Congress has no authority to do, regardless of which office it attempts to legislate.

As such, because by Section 1182(n) Congress literally attempts to run the Executive Branch, that section is in no way a check on the conduct of the Executive Branch, nor a balancing of Congressional authority with regard to that of the Executive. Instead Congress legislated the official conduct of the Secretary of Labor, and Attorney General, instead of leaving that to Executive authority. Nothing in The Constitution of The United States gives Congress the authority to do so.

Void for vagueness: Section 1184(i) can be read with multiple distinct meanings, with regard to the qualifier, “(or its equivalent)”, to its preceding phrase of “attainment of a bachelor’s or higher degree in the specific specialty“. It is not clear whether it refers to the “equivalent” of a Bachelor's Degree, or the “equivalent” of a given “specific specialty”. Each reading seems equally sensible, in that Congress may have intended to not limit the definition of “Specialty Occupation” to only those requiring a Bachelor's Degree to enter, but also to include those that may accept or require other equivalent forms of education or prior training to enter, while also allowing for some equivalence between specialties, so that prior training or education in one specialty can be considered equivalent to that toward some other specialty. Both are realistic scenarios. There exist multiple equivalent training and education curricula to Bachelor's Degrees, including *curriculum vitae*, in se, while at the same time occupational specialties are not discreet entities, but exist across a broad spectrum, with wide overlap among them.

However, it appears that Congress did not intend to include both scenarios, or the qualifier would have been “(or their equivalents)”.

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Because Section 1184(i) can be read multiple ways that are equally sensible but completely different, and there exists no way to determine which was intended by Congress, that is unconstitutionally vague.

The “H1B Program”, as a whole, enabled by the statutes challenged, among others, violates Rights of Americans as described supra, and as such is unconstitutional as-applied. Further, statutes that violate Fundamental Rights, or that direct state officers to do so are unconstitutional on their face.

Constitutional Standards Of Review:

Strict Scrutiny:

There exists NO COMPELLING OBJECTIVE whatsoever for the “H1B Program”. To that end the burden of proof is upon , and Respondent must show the Compelling Objective. Failure to show a Compelling Objective therefor voids any statute, regulation, policy, or custom that violates Fundamental Rights.

Less restrictive alternatives exist:

- a) Business sponsored scholarships are tax-deductible, and can easily supplant the importation of foreign workers. Simply because a company can't find a worker does not mean they cannot create one.
- b) Remote work. Given the advent of remote work, the potential talent pool available to employers increases exponentially. Claims of inability to find American workers within a given “ordinary commute distance” fail when American workers can attend from anywhere in the world at anytime.

Rational Basis:

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Arbitrariness: There is nothing more arbitrary than a lottery. To the stated objective of the law,

the individuals selected should be selected by aptitude, not random chance, and their aptitude should be determined by American workers already present at the sponsoring employers, occupying the same specialty for which the LCA was filed.

Caprice: The capricious nature of the program is a product of the caprice of its users, who either somehow believe or have the attitude that American workers are inferior. Further, the statute as applied, at least toward occupations classified in SOC 15-1200, is capricious because it is in no way connected to actual reality. It is not 1990. The Internet is no longer in its nascence. Computer related everything is commonplace. There is no lack of experience nor expertise by American workers in that occupation. Further, there exists no basis in reality that India is capable of producing people talented at anything that is not available from American workers. India's per-capita GDP is approximately \$2,700. American per-capita GDP is more than \$85,000. India's population is approximately four times that of America, yet their total GDP is only around \$3.9 Trillion. Americas GDP is over \$29 Trillion. India is a third-world shithole. Its streets are paved with dirt, there is no real hygiene, the place smells of feces and sewage, street traffic is unregulated and crowded, there is no sanitation enforcement for food preparers, and organized crime operations are allowed to proliferate, setting up call centers that scam American Elderly People out of their life savings, to the tune of hundreds of millions of Dollars per year. Yet people from India get seventy percent of H1B Visas. Why? Because scamming is the one thing people from India excel at, and as such they have scammed This Country out of its best jobs, the way they scam everything else. The idea that America needs people like that for any reason, is pure caprice.

Counter-Claims Against Appellant:

Because the Chamber can sue on behalf of its membership, it may also defend on behalf of them as well. As such the Chamber in its own self as a corporation, or in collusion or conspiracy with its members by its association with them is an “Enterprise” within the meaning of 18 U.S. Code § 1961(4).

Americans engage in commerce both as employees and as director of and worker for a one-person corporation. That commerce takes place across state lines because Counter-Claimant works “remotely” in some cases using telecommunications to interact with customers, and deliver services, and in other cases Counter-Claimant travels across state lines to do so.

The Chamber and its members interfere with Americans engaging in that commerce as follows:

Wire Fraud: The Chamber by association, and its membership engages in a pattern of wire fraud by publishing two or more fraudulent job advertisements via internet websites. These “ghost jobs” deprive persons engaging in commerce of the right of honest services. Such persons receive those phony offers of employment and business across state lines by searching for them via the internet, and by receiving those offers by email, telephone, and text message. That scheme and artifice to defraud perpetrated by the Chamber and its members misleads persons engaging in commerce to accept those phony offers. By doing so, they deprive such persons of the right of honest services, and that deprivation results in persons irrevocably expending time and effort pursuing fraudulent offers. That same scheme and artifice to defraud also causes a person to suffer emotional distress by falsely causing them to believe that they are not desirable as an employee, or that they are unemployable, or that there is something about them that is at fault. That scheme and artifice to defraud further causes persons engaging in commerce to unnecessarily devote time trying a multitude of

ways to format their resumes to supposedly be better detected by automated systems, or pursuing supposed “coaching” from more fraudulent actors purporting to assist such persons with applying for such jobs, in some cases at cost to such applicants. As such, those fraudulent offers cause persons to lose time and money, and interfere with those persons pursuing legitimate offers, and obtaining actual revenue from it, by directing that pursuit toward wholly non-existing entities. This pattern of conduct by The Chamber and its member is in violation of 18 U.S. Code § 1343, and has caused caused Counter-Claimant to lose time and revenue as described, and does continue to do so because Counter-Claimant must now expend inordinate time and effort verifying each and every such offer before accepting any, instead of being able to engage in commerce in good faith with The Chamber and its members, and other parties.

Visa Fraud: The Chamber by association and its members engage in a pattern of Visa Fraud by making two or more false attestations on the LCAs they file, and by filing two or more LCAs containing false attestations. The Chamber by association and its members falsely attest that they have a job available in the first place, when they do not, as well as falsely attest to nonexistent employers, nonexistent companies, nonexistent secondary entities, and nonexistent worksites. On their LCAs they claim “virtual offices”, small offices, or apartments as either or both Employer Address, and Worksite Address, and file more LCAs than persons could ever fit in those addresses. In some cases the addresses given are bogus addresses or vacant lots. The Chamber by association and its members interfere with persons engaging in commerce by illegally procuring Visa workers by filing large numbers of such fraudulent LCAs, to import as many foreign workers as possible, and thus depriving American workers and Businesses of the jobs that are filled by those foreign workers. That pattern of conduct is in violation of 18 U.S. Code § 1546(a), and did and does interfere with Counter-Claimant engaging in commerce and receiving revenue therefrom, as described.

Accomplice Liability Claims:

Accomplice liability, and accessory after the fact liability for the same Counter Claims described supra exist against the following individuals:

Daryl L. Joseffer

Paul W. Hughes

Sarah P. Hogarth

Mary H. Schnoor

Alex C. Boota

Grace Wallack

Emmett Witkovsky-Eldred

Who are Appellant's attorneys of record in this matter. By and through their professional association to, and contractual agreement with Appellant, these individuals do aid and abet the wire fraud and visa fraud committed by their client, and its membership, and by this action are attempting to protect their client and its membership from legal consequences for the fraud their client and its membership has committed in the past, and are aiding and abetting their client and its membership with continued such fraud. As such they are acting both as accessories after the fact, and as accomplices to their clients. In all cases because accomplice liability is the same as that of the principal, Appellant's attorneys are liable to the same extent that Appellant and its membership is.

As in all prosecutions, the goal is to “make an example” of these lawyers, and “send a message to all their kind”. The example that is being made of them is one of people who sell out their own country and its people to foreign interests for profit, and the message to all their kind is that they can end up in prison for it.

EXHIBIT 1**Free Press Publications:**

Amicus gives this Court Judicial Notice of the following free press publications in aid of its Jurisdiction in this matter:

“Reddit” Communities where facts relevant to this claim are published openly in the Free Press, and viewed by hundreds of thousands of American workers:

<https://www.reddit.com/r/AmericanTechWorkers/>

<https://www.reddit.com/r/StopH1B/>

<https://www.reddit.com/r/CSCareerHacking/>

<https://www.reddit.com/r/SoftwareEngineerJobs/>

<https://www.reddit.com/r/H1BVisaFraud/>

<https://www.reddit.com/r/frisco/>

Two well respected scam busters with thousands of hours of time and effort between them exposing and thwarting Indian scammers discuss how these scammers exploit systems in the same manner that is used to exploit the H1B program:

<https://youtu.be/7zXMPzCrInc?t=4689>

The trajectory of H1B fraud by Indian scammers over the years:

https://www.pewresearch.org/wp-content/uploads/sites/20/2025/03/SR_25.03.04_h-1b_3.png

Note the distinctive inflection point around 2008 followed by a positive slope.

Senator Sanders discussing the disproportionation of H1B Visas to “India Focused” IT Firms:

https://www.reddit.com/r/AmericanTechWorkers/comments/1nmb3ri/bernie_sanders_warni ng_us_about_h1b_visas_17/

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“How an Army of Middlemen Game the US Work Visa System”

https://www.youtube.com/watch?v=p_jjJMoPHVA

A report by Bloomberg Originals regarding the circumstances described herein.

Indian scammers discussing how IT staffing companies scam the H1B Visa system to obtain sixty-five percent of the Visas issued:

<https://www.youtube.com/watch?v=u2lAhknQrsk>

(Note: Channel Terminated).

Indian Journalists discussing the H1B scam in great detail:

https://www.youtube.com/watch?v=CMfTZhp_vK4

Articles about “Degree Mills” in India:

https://www.reddit.com/r/hyderabad/comments/18vr2p0/ameerpet_in_hyderabad_the_go_to_zone_for_aspiring/

https://www.reddit.com/r/hyderabad/comments/1lsfesr/why_are_so_many_people_having_fake_experiences_or/

<https://www.scmp.com/week-asia/people/article/3123929/indias-fake-degrees-hundreds-singapore-malaysia-us-canada-left>

Why Even Harvard’s Smartest Graduates Can’t Get a Job Now

<https://www.youtube.com/watch?v=rXvZ27pMZ1w>

More Than 1 Million US Jobs Cut As AI & Slow Spending Hit

<https://www.youtube.com/shorts/xUhjb4TQnOc>

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More Than 1 Million Jobs Have Been Cut This Year, Report Says

<https://www.forbes.com/sites/maryroeloffs/2025/11/06/more-than-1-million-jobs-have-been-cut-this-year-report-says>

Expert explains how gov't needs to tackle '3 headed monster' H1B visa program:

Fox News Digital spoke to Skillstorm CEO Justin Vianello about how the visa program needs to be fixed to give American workers more opportunity.

<https://www.msn.com/en-us/video/news/expert-explains-how-gov%E2%80%99t-needs-to-tackle-%E2%80%993-headed-monster%E2%80%99-h1b-visa-program/vi-AA1PhjZm>

Truth about Desi Consultancies in USA

Journalist explains "Desi Consultancies"

<https://www.youtube.com/watch?v=A9IIJrk64u4>

Why Indians do H1B Fraud? Exposing Indian IT Companies

Journalist explains some of the H1B Fraud

<https://www.youtube.com/watch?v=Agnh-na2zp4>

Video By Cohen & Grigsby Law Firm Explaining How They Defraud The PERM Process:

<https://www.youtube.com/watch?v=TCbFEgFajGU&list=PL09418DBE98384166>

U.S. Consular Officer Mahvash Siddiqui, discussing how as many as 90% of the Educational Credentials submitted in support of Visa Applications were fraudulent:

<https://cis.org/Parsing-Immigration-Policy/Industrialized-Fraud-H1B-Visa-Program>

"Reddit" Posts with Jobs discovered by examining LCA Disclosure Data and from other sources:

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https://www.reddit.com/r/SoftwareEngineerJobs/comments/1nic7bu/tesla_has_thousands_of_jobs_available/ – 204,000 Views / 2 Months

https://www.reddit.com/r/SoftwareEngineerJobs/comments/1ofqdkq/salesforce_has_thousands_of_jobs_available_remote/ – 111,000 Views / 1 Month

https://www.reddit.com/r/SoftwareEngineerJobs/comments/1olsthp/us_chamber_of_commerce_has_300000_members_with/ – 61,000 Views / 25 days

https://www.reddit.com/r/CSCareerHacking/comments/1nib82u/tesla_has_thousands_of_jobs_available/ – 105,000 Views / 2 Months

https://www.reddit.com/r/jobsearch/comments/1nibies/tesla_has_thousands_of_jobs_available/ – 72,000 Views / 2 Months

https://www.reddit.com/r/CSCareerHacking/comments/1ne1xrb/how_to_get_direct_to_hiring_managers/ – 41,000 Views / 3 Months

https://www.reddit.com/r/SoftwareEngineerJobs/comments/1oez093/us_chamber_of_commerce_members_have_thousands_of/ – 41,000 Views / 1 Month

https://www.reddit.com/r/SoftwareEngineerJobs/comments/1ogkg4g/kforce_has_thousands_of_jobs_available/ 42,000 Views / 1 Month

A reddit comment describing a local network of fraudsters in Frisco Texas circumventing H1B Visa requirements:

<https://www.reddit.com/r/frisco/comments/1q8482l/comment/nz2ym8i/?context=1>

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EXHIBIT 2**LCA Disclosure Data Investigations By Amicus:**

The following investigation of LCA Disclosure Data is presented herein in support of this Motion. The relevance to this matter is that since Appellant's membership is so large, there is a high probability that the fraudulent companies investigated by Amicus to date, as well as others who operate in kind, are part of Appellant's membership.

Investigating one previously known WILLFUL_VIOLATOR, Srinivasa Reddy Kandi, is documented in this YouTube video:

<https://www.youtube.com/watch?v=WWPx-9tNn-w> (Note: Channel Terminated).

The contents of that video have been summarized in this Reddit post:

https://www.reddit.com/r/frisco/comments/1q8482l/anybody_know_srinivasa_reddy_kandi/

The above video describes thousands of LCAs filed, ALL on behalf of entirely non-existent companies, claiming some of the largest corporations in the market as their clients. All of the phony front companies in this video are registered to multiple parties at a single residential address, 6688 EXCELSIOR PL, FRISCO TX. There is one record in the LCA Data with that same address listed as the WORKSITE_ADDRESS:

EMPLOYER_NAME: ABSOLUTE INFORMATION TECHNOLOGIES.

Searching the LCA Data for either EMPLOYER_NAME or SECONDARY_ENTITY_BUSINESS_NAME matching ABSOLUTE INFORMATION TECHNOLOGIES, reveals ninety-three records with ten of them being associated with TekOrg. Doing the same search for TekOrg reveals 2,325 more records, where the majority of them have the exact same JOB_TITLE. When a SECONDARY_ENTITY is defined in the records for TekOrg, many of them are just yet another Small House IT Company, (SHITCO).

1 One address for TekOrg resolves to a residential apartment that may or may not be occupied, (1326 E Algonquin Rd, Apt 2E, Schaumburg IL), but is certainly not occupied by the 1,618 beneficiaries of the LCAs that were filed by TekOrg with that location as the WORKSITE_ADDRESS. All of those LCAs have the same JOB_TITLE, and all of them have SECONDARY_ENTITIES defined, with most of those being additional SHITCOs, or other IT Staffing Agencies. The total number of LCAs, (2022 – 2025Q3), that have been filed with a WORKSITE_ADDRESS at that apartment is 1,628. Five of the additional ten beyond those filed by TekOrg were filed by COGNIZANT TECHNOLOGY SOLUTIONS US CORP. This reveals a nexus between Srinivasa Reddy Kandi, and COGNIZANT, a large IT Services provider, incorporated in New Jersey, and operated by Indian nationals.

Moreover, of the 2,023 total LCAs filed by TekOrg listing that apartment as the EMPLOYER_ADDRESS, 387 of them list “1st Ave North of Cermak Rd, Hines, IL” as the WORKSITE_ADDRESS. (A non-fixed address, that is a one-mile long stretch of road on the west side of 1st Avenue, from Cermak Road, North to Roosevelt Road). No SECONDARY_ENTITY_BUSINESS_NAME is shown for the LCAs at this WORKSITE_ADDRESS.

Another address used by TekOrg as both EMPLOYER_ADDRESS and WORKSITE_ADDRESS is 312 S Finley Rd, Apt 3K, Lombard IL. This is also a residential apartment that appears to be owned by the same property management company as the Algonquin Road property. There are two-hundred LCAs filed with this apartment listed as the EMPLOYER_ADDRESS, and all but one list it as the WORKSITE_ADDRESS as well. The remaining one uses the Cermak Road address mentioned supra.

28 Upon contacting the Employer POC for TekOrg by telephone, that person disclosed that TekOrg had moved to Virginia, and that the Illinois addresses were “all a scam”. It was not clear whether that meant by TekOrg, or by some other party against TekOrg. It was further

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disclosed that the TekOrg office in Virginia is a “shared” office, and that there is only one person present there, that TekOrg has nineteen H1B employees, and zero American workers.

Synechron Inc. – New York City

Filed 207 LCAs since 2022, with no secondary entity business name, for workers at 1 Corporate Place South, | Suite 200 in Piscataway NJ. This suite is listed as being 6,918 sq ft, approximately 1/3 what may be needed for that many persons. That suite is currently listed as available and on the market.

An additional 64 LCAs were filed for workers at 214 N Tryon St. in Charlotte NC.

Synechron also filed 31 LCAs for workers at 1540 International Parkway, Suite 2000 | Lake Mary, FL. This address is listed as a “virtual office”, or “shared office” that can physically occupy no more than two people.

Synechron currently lists a total of 10 jobs available in NC, FL, TX, NY, PA and NJ on their website. Synechron does currently list more than 100 jobs in these states on LinkedIn, but that platform charges a fee to message Synechron representatives to verify those jobs.

Upon contacting EMPLOYER_POC, Abhay Jadav to verify Labor Conditions for those LCAs, he claimed he was driving and could not talk. He agreed to take the call a half hour later. Called back multiple times, no answer, directed to voicemail, which was full.

Petitioner contacted a messenger service in NYC to see if they could go to the office location to determine if there actually was an active business there. That building does not allow persons to deliver directly to offices, but instead to a messenger center on the ground floor. For now, Petitioner is unable to determine Labor Conditions at that location, or if there even exists a valid business at that location. Upon contacting Jadav several weeks later by telephone, and asked how many employees Synechron had, how many H1B employees it

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had, and how many American workers. Jadav claimed that he did not have that information and ended the call.

Office Depot – Boca Raton Florida

One hundred ninety three LCA filings since 2022, by ODP and its personnel vendors, all for IT related positions, but no such corresponding jobs on their website. Contacted EMPLOYER_POC, Jamila Paradas. Paradas refused to disclose anything from their Public Access File, or assist with verifying Labor Conditions at the worksite, and ended the call. Petitioner filed a complaint with U.S. DOL WHD regarding Paradas. Additionally Jack Heh, the Employer POC for HCL, a vendor to ODP, was contacted to inquire what positions were available through HCL at ODP. Heh acted as though doing such a thing was somehow suspicious. When asked about why HCL cannot find American workers for ODP, Heh claimed that he was feeling harassed and ended the call. As usual during that conversation, Heh claimed that jobseekers needed to use the companies job application website, however, HCL shows no jobs available at all in Florida.

Majestic IT – Boca Raton / Deerfield Beach Florida

Went to both locations listed in LCA Disclosure Data. Boca Raton location was occupied by another tenant. Office was small, no more than two persons could work comfortably. Left LCA Review / PAF Challenge request with contact information under door. Majestic IT filed for eighteen LCAs at this address. At the Deerfield Beach location the office was leased to Majestic IT, but no one present. Again, office appeared to be for two to three persons, not the thirty-three for which LCAs were filed. Petitioner likewise left a request for Labor Condition documents under the door. Majestic IT replied on 24 September 2025 that no American workers applied to the corresponding Jobs. Employer POC responded to a later inquiry as to the number of jobs available that Majestic IT had no jobs available.

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JM Family Companies – Deerfield Beach Florida

No LCAs filed at all. Not typical of larger companies that employ foreign workers via outsource. Typically they will have one or more LCAs filed in their own name. In this case all LCAs filed for persons placed at JM Family Companies are filed by others, with JM Family Companies shown as the SECONDARY_BUSINESS_ENTITY. Two-hundred fifty-one since 2022. Most by SHITCOs, two filed by Accenture, two by Capgemini, twelve by Compunnel. Most likely this is because JM Family Companies is an automobile-industry company. If they hired foreign workers directly they would have to give notice to existing employees, who may be unionized. JM Family Companies is able to skirt this obligation by using other entities to provide foreign workers.

510 Franklin Ave, Nutley NJ – A High Tech Mecca

This nondescript, former early 20th Century theatre in Nutley New Jersey has seven businesses, all SHITCOs, sharing eight small suites, who claim the biggest names in industry as their clients, and collectively filed six-hundred one LCAs since 2022. Petitioner sent an inspector there and there appears to be nobody present at that address. Petitioner contacted the property manager, and the property manager claimed that the suites were actually occupied, but that he did not know who the tenants were. All LCAs associated with this address were filed by the John Boudia Law Firm.

KForce – Multiple possible violations of law, civil and criminal, including RICO

KForce uses illegal background checks to disqualify American workers. They use prior criminal convictions as cause to PERMANENTLY remove those persons from consideration. These background checks are illegal because KForce deliberately does not provide adverse-action notice to persons prior to taking adverse-action against them on basis of the background check report, but rather immediately and permanently blacklists them, so that they can claim that they cannot find American workers. KForce uses false offers of employment, (false pretenses), to run background checks on people, so they can

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permanently disqualify them, and then claim that they cannot find American workers.

KForce illegally runs background checks on persons who are not its employees, again to disqualify American workers and contractors, as described infra.

On 22 September 2025, Petitioner Received a solicitation from ConvexTech Inc for a remote role with KForce at UMMS In Maryland. (University of Maryland Medical System). The email Petitioner received suggested that the actual employer would be UMMS. Later while speaking to a person located in India, that person claimed KForce would be the actual employer. The job did not appear anywhere on the UMMS Jobs website, nor the KForce jobs website. Petitioner contacted KForce by phone on 23 September 2025, and was almost unable to get through to anyone. None of the phone numbers advertised by KForce ever ring through to a human being. Eventually, Petitioner got through to a “help desk”. The agent claimed that there was “no way” that she could verify that the job was real, nor that ConvexTech was an actual vendor to KForce, nor that the solicitation from ConvexTech on behalf of KForce was actually legitimate.

Maryland state agencies and Universities have filed more than two thousand LCAs in the past three years. Maryland is a known region for people from India to immigrate, and form SHITCOs. Searching for ConvexTech in the LCA Database reveals that their EMPLOYER_ADDRESS resolves to a small Regus™ virtual-office or shared office, and that for the thirty-one LCAs filed in the past three years, by ConvexTech, twenty-seven of them are for a single SECONDARY_BUSINESS_ENTITY. (This is one indicia of fraud). That client is CyberMart LLC. The LCA Disclosure Data shows three separate WORKSITE_ADDRESS locations for CyberMart LLC. Two of them resolve to vacant lots in Texas, (certain indicia of fraud), the third resolves to a Regus™ virtual-office or shared office. As for the online inventory of CyberMart, it is around fifty items per category. None of those items are unique, original, or extra-ordinary, and all of them are exactly the sort of items that stock the shelves of thousands of small independent grocery stores, “bodegas”,

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neighborhood markets and convenience stores around the country, and are readily available from distributors like McLane, and Core-Mark. Additionally, CyberMart on its website also solicits independent sellers to use CyberMart's online platform to sell their own products, and claims to offer "Free Registration, Free Marketing, Zero Transaction Fees, No Commission, Free Product Optimization". This is suspicious because what CyberMart is supposedly offering for free, is what ALL other online selling platforms charge money for, to earn the revenue that sustains the business, and yield a profit margin. This suggests that the money funding this business is coming from somewhere else, and as such, CyberMart is a front for money-laundering.

Additionally, when testing the CyberMart online market by attempting to purchase a jar of Mayonnaise, Petitioner discovered that upon proceeding to checkout, the website prompts the purchaser to create an account by entering an email address. It then prompts the user to enter a "One Time Password", (OTP), that was sent to the user's email, with a fifteen-second time-out! This is absolutely out of norm for such systems, and makes it almost impossible to actually purchase anything. After managing to successfully play "Beat The Clock", and getting through to the shipping details screen, and entering contact information, the user is then prompted again to enter another OTP, that is sent this time via SMS to the user's phone, again with a fifteen-second timeout! Since the phone number Petitioner entered was like that for movies, (555 prefix), he has no knowledge as to whether the text message would be received in time to actually complete a purchase, and based on the fraudulent nature of that website, Petitioner was reluctant to enter any of his actual personal or financial information like a phone number or credit card number.

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When viewing the shopping cart page for the CyberMart online market, during the purchase process, it showed the selected item as being "In Stock", but below the "Proceed to Checkout" button it makes the disclaimer that "Item availability and pricing are not guaranteed until payment is final." Again, suggestive of fraud. Finally, upon dialing the

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phone number shown on the site to contact them, it rang through to the personal phone of an unknown individual, not to any kind of business location, and that person had no knowledge of that phone number ever being associated with CyberMart, much less any knowledge of CyberMart at all. That person spoke clear American English as someone who had their entire life, with no foreign accent. Based on the practical unusability of CyberMart.com, a bogus phone number, the LCAs filed for CyberMart, the company that filed them, and its association to KForce, it is almost certain that CyberMart.com is a front, designed so that its operators will never have to ship any goods, and instead the phony company operating it is used for other things like money laundering, wire fraud, or other RICO acts related to Visa procurement, and immigration.

KForce has made it publicly known that Petitioner is permanently barred from employment and business with them. Petitioner has brought legal actions against KForce in the past and in their pleadings they have unequivocally stated that they will not hire Petitioner. In this instance after responding to the solicitation from ConvexTech, and contacting their agent by phone, who was physically located in India, Petitioner replied to the email he received, requesting submission for the role. At this point in the application process, in ALL other cases, the soliciting party sent a "rate confirmation" email, which petitioner confirmed by reply, and then the soliciting party at least claimed they were submitting Petitioner's application to the hiring party. In this case, the party contacting Petitioner stated that he would submit Petitioner's Resume to the manager, and get back to Petitioner. In Indian scammer IT Staffing parlance, forwarding something to a manager is a euphemism for doing nothing.

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In two prior recent instances, Petitioner was contacted by other parties physically located in India, but claiming to be representing SHITCOs located in America, for roles through KForce, as typical fourth-party Indian deals. In the earliest of the two, Petitioner simply skipped these interloping parties entirely, and attempted to contact the end client directly by

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phone, but no one ever answered or called back. Petitioner submitted a Vendor Application to them on behalf of his corporation, but never received any response. The employer in that case was Corewell Health, who has filed 157 LCAs on its own behalf, since 2022, and has an additional 30 filed on its behalf by SHITCOs. The later of these two prior instances involves an employer in Petitioner's "ordinary commute distance", AutoNation, which has filed thirty-seven LCAs on its own behalf, since 2022, with an additional seventy-seven filed on its behalf by mostly SHITCOs, but also by Tata Consultancy Services and Compunnel. Petitioner will ultimately be doing a Labor Conditions Review and PAF Challenge for those LCAs.

In both of these instances, the offshore "recruiter" claimed that Petitioner would be working as an employee of the fourth-party company soliciting for KForce, or could work as a "Corp to Corp" contractor to them if Petitioner operated a corporation. But, Petitioner was told that in both such instances KForce would be running a background check on Petitioner, and submitting it to the end client. It is a violation of the FCRA for KForce to run an employment-purposed background check on a person who is not, nor will be an employee of KForce, and it is a violation of the FCRA for KForce to unlawfully act as a Consumer Reporting Agency by furnishing a background check report relating to a particular person to a party that has no relationship whatsoever with that person. KForce engages in these unlawful background checking practices to permanently disqualify Americans from employment, in order to profit from its Visa sponsorship business, as described infra.

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Because by its own policy there was no reason for KForce to contact Petitioner in the first place, it appears that KForce is using its blacklist deliberately to claim that they contacted American workers, but none are employable, in order to give the role to current H1B Visa holders under its employ who are currently "benched", (i.e. between assignments), or for whom KForce has otherwise previously received a Visa. The reason for this is that as a Visa sponsor, KForce is obligated to continue to pay prevailing wages to its Visa beneficiaries

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even during down time, and by its own count has successfully processed 38,000 Visa cases. This is substantiated as follows:

KForce claims that it ranks in the top 1% for Visa Sponsorship in the U.S., and that all of its consultants are W-2 employees:

<https://www.kforce.com/solutions/international-talent-solutions/>

KForce openly advertises itself as a Visa sponsor:

<https://www.kforce.com/find-work/visa-sponsorship-solutions/>

KForce offers, or claims to offer comprehensive assistance of various types to foreign workers including:

- a) Visa Remediation: (“addressing” and “resolving” “even the most complex visa issues to ensure successful engagement”), and;
- b) Direct marketing of candidates to end clients, and;
- c) Consultant Redeployment: “Before your current assignment ends, our redeployment team of experienced staffing specialists are already working to find your next opportunity.”

These are services that KForce never provides to its American workers.

During a previous investigation of KForce, Petitioner contacted them as a client, and spoke to an account manager to request a computer programmer for an entry-level programming task which many Americans offer publicly on Craigslist, Freelancer, and UpWork. During the conversation, the account manager acknowledged that KForce runs background checks on all persons it places at clients, and stated that if such persons have criminal records, “we don't ever deal with them again”. Finally in that conversation, when Petitioner asked about the possibility of obtaining a foreign worker, that account manager stated that it “could be arranged”. At no time did that person ever state that it would only be possible if an

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American worker could not be found.

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Additionally, in one of the LCAs filed by TekOrg mentioned supra, KForce Inc. is listed as the SECONDARY_ENTITY_BUSINESS_NAME, at the supposed worksite in the Algonquin Road apartment.

ICCS / iContentSAAS

Listed as SECONDARY_BUSINESS_ENTITY in one hundred forty-one LCA filings since 2022, company headquarters is 9250 W Bay Harbor Drive, Unit 7C, a condo in Miami area. This business is listed as a secondary entity by EMPLOYER companies that are suspect, including one known fraud, QUANTUM TECHNOLOGIES LLC, a Srinivasa Reddy company. All LCAs filed with ICCS as a Secondary Entity, claim beneficiaries will be working remotely for that entity.

This business entity is suspect because:

- i.) It is associated with Srinivasa Reddy Kandi.
- ii.) Its headquarters location is not zoned for business, but is residential, and operating a business from that residence is almost certainly a violation of the HOA rules in that community.
- iii.) The WORKSITE_ADDRESS shown in the LCAs where ICCS is a Secondary Entity, is that of the EMPLOYER company. The number of LCAs filed for these worksite addresses appears to exceed the occupant capacity for those locations.
- iii) It is highly unlikely that at 9250 W Bay Harbor Drive, Unit 7C, there exists any kind of data center, or business, that others would be remotely logging in to, from the WORKSITE_ADDRESS, or that would be using any software, or any kind of technology product produced by workers at the WORKSITE_ADDRESS, much less be using the work product of one-hundred or more people.
- iv) In a worst-case scenario if there is such a telecommunications hub there, it may be in use for criminal purposes, or espionage purposes. The advantage of that location is that a warrant is required for entry, whereas anything rented like ordinary business locations

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could be accessed by permission of the landlord. The community itself is very low-key with typically only older people ever allowed to live there, and units that may only be used as vacation or winter homes by some residents. Almost certainly a place where people mind their business and live quietly, and the police rarely ever have to go. Again, this business is likely a front of some kind, possibly money-laundering, or worse.

Remote Work

The LCA Data Show at least 37,000 LCAs filed that indicate remote work to various Secondary Business Entities. As a class, these are likely fraudulent. For an Employer to claim they need to import a foreign worker to move to America, to establish a residence anywhere in the country, to work from home, is highly suspect.

However, a remote-work exploit that is commonplace and has been recorded to some extent at least in Federal Cases against the “Bollywood” companies, is that the actual persons using Visas to stay in America have no Specialty Occupation skill whatsoever. They are literally placeholders. The actual work is being done by persons in India, because by its nature, (Software Development), it can be produced and delivered remotely. Ultimately the Secondary Entity receives a person at their Worksite who has no qualifications at all, but fronts for a team of developers offshore.

Here is The Math:

The top ten offshore IT Services Companies, (“Bollywood”), using SHITCOs as fronts are:

- i) Tata Consultancy Services, an Indian Corporation.
- ii) Cognizant, incorporated in New Jersey where identity of corporate officers is not publicly disclosed, incorporated and operated predominantly by Indian nationals.
- iii) Infosys, an Indian corporation, U.S. Headquarters in Richardson Texas.
- iv) Capgemini, incorporated in France, with a large Indian workforce in India, used to traffic Indian nationals into American Jobs.

- v) LTIMINDTREE incorporated in New Jersey, formerly operating as Larsen and Toubro.
- vi) HCL, Indian company with U.S. Headquarters in Sunnyvale California.
- vii) Accenture, Irish corporation, used to traffic Indian nationals into American Jobs.
- viii) WiPro, incorporated in New Jersey, operated by Indian nationals.
- ix) Compunnel. incorporated in New Jersey, operated by Indian nationals.
- x) Tech Mahindra, part of Mahindra Group, an Indian company, with American headquarters in Plano TX.

Literally these ten companies are served by more than one thousand “Visawali”. That is, just over 1,000 SHITCOs list one or more of the above companies as the SECONDARY_ENTITY_BUSINESS_NAME in their LCA flings. What this means is that by using more than 1,000 other companies to front for them, the top ten “India Focused” personnel companies are able to increase their chances of Visa lottery winning, by three orders of magnitude, while at the same time obscuring the discovery of their fraud by the same factor.

This is deliberate and intentional, and there is evidence to suggest that these SHITCOs that act as “Visawali”, were all funded by the larger IT Vendors for the purpose of exponentially increasing the number of LCAs they can file.

Lists of “Desi Consultancies”, sorted by state, and grouped by Employer Address:

<https://github.com/ITContractorsUnion/ITContractorsUnion/tree/Main/Investigation>

These lists show that the majority of the phony front-companies mentioned are using small offices, virtual-offices, shared offices, residential addresses, and Registered Agent addresses, as the Employer Address, that are never actually staffed, with any personnel, and in many cases are fraudulently using such addresses as Worksite Addresses as well.

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Ultimately, all of this activity is coordinated through a professional association known as the ITServe Alliance, and is assisted by organizations like the South Asian Bar Association.

The totality of circumstances described supra means that some number of LCAs contain wholly false attestations, and based on analysis of LCA Disclosure Data, that number appears prohibitively large. This means some number of Visas were actually issued to persons based on a wholly false LCA, and that those persons are illegally in America now, or on their way to be here illegally since the most recent lottery. The H1B Visa Program is replete with such gross fraud and cheating by Visa sponsors, false pretenses by Visa sponsors, employment law violations by Visa sponsors, and acts by Visa sponsors that are predicate acts of Racketeer Influenced Corrupt Organizations.

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EXHIBIT 3:**Counts of LCAs Filed By Immigration Law Firms 2022 To 2025 Q4:**

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count | lawfirm_name_business_name
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306382 | Fragomen Del Rey Bernsen & Loewy LLP
138843 | BERRY APPLEMAN & LEIDEN LLP
70240 | OGLETREE DEAKINS NASH SMOAK & STEWART PC
52491 | EY Law LLP
30420 | Seyfarth Shaw LLP
28138 | Erickson Immigration Group
25294 | Corporate Immigration Partners PC
21171 | Law Office of Thomas V. Allen PLLC.
19087 | Goel & Anderson LLC
15609 | Chugh LLP
15147 | Usilaw Inc
15113 | THE LAW FIRM OF SIM PARVATHANENI & BROWN PLLC
14527 | Global Immigration Associates PC
13475 | Fakhoury Global Immigration USA PC
12910 | JACKSON LEWIS PC
11563 | FISHER & PHILLIPS LLP
11133 | Greenberg Traurig LLP
10143 | Gibney Anthony & Flaherty LLP
10107 | Klasko Immigration Law Partners LLP
9505 | BBI LAW GROUP PC
9415 | Ogletree Deakins
9330 | INTERNATIONAL LEGAL & BUSINESS SERVICES GROUP LLP
9317 | Duane Morris LLP

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9149 | Tafapolsky & Smith LLP
8989 | SOMIREDDY LAW GROUP PLLC
8891 | Global Immigration Partners Inc
8083 | Wolfsdorf Rosenthal LLP
7796 | Corporate Immigration Partners LLP
7467 | Quarles & Brady LLP
7209 | Morgan Lewis & Bockius LLP
7137 | Jethmalani & Nallaseth PLLC
6732 | Joseph Kallabat & Associates PC
6428 | Mehlman Jacobs LLP
6340 | Kodem Law Firm PLLC
6161 | Foster LLP
6030 | Law Offices of Mary Kennedy LLC
5599 | KRAMER LEVIN NAFTALIS & FRANKEL LLP
5574 | Constangy Brooks Smith & Prophete LLP
5516 | Vialto Partners LLP
4961 | Graham Adair Inc
4918 | Bedi & Martinez Esqs.
4854 | Ellis Porter PLC
4832 | LAW OFFICE OF THOMAS V. ALLEN PLLC
4474 | Akula & Associates PC
4465 | Dentons Cohen & Grigsby PC
4417 | Farrell LLP
4236 | Tadmor & Tadmor LLP
4204 | Vialto Partners LLP formerly PwC Law LLP
4052 | Immigration Law Group LLP
4000 | Masuda Funai Eifert & Mitchell Ltd.
3993 | Landau Hess Simon Choi & Doebley

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Prepared By and Submitted to the Court, This 12 January 2026, by:

Mr. Piero A. Bugoni, Amicus

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